Benjamin Jay Barber, pro se

Jane Kay Cortez, pro se

10043 SE 32nd Ave

Milwaukie, OR 97222

971-270-0855

starworks5@gmail.com

Defendants

IN THE JUSTICE COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

HOUSING AUTHORITY OF CLACKAMAS COUNTY,

Plaintiff,

v.

JANE KAY CORTEZ, BENJAMIN JAY BARBER, and ALL OTHER OCCUPANTS,

Defendants.

Case No. 26FE0586

DEFENDANTS' EMERGENCY MOTION FOR RELIEF FROM JUDGMENT, TO SET ASIDE DEFAULT, AND TO STAY ENFORCEMENT

ORCP 71 B; ORS 105.137; ORS 53.040 / ORS 55.305 as applicable; 42 U.S.C. § 1437p; 24 C.F.R. §§ 970.21, 972.130

Defendants Jane Kay Cortez and Benjamin Jay Barber move for emergency relief from any default judgment, judgment for possession, judgment of restitution, order of default, writ-related order, or other adverse judgment entered after Defendants missed the April 22, 2026 court appearance at 8:15 a.m.

Defendants request that the Court:

1. Vacate and set aside any default or possession judgment entered on April 22, 2026;
2. Recall, stay, quash, or suspend any notice of restitution, writ of execution, lockout process, or eviction trespass notice;
3. Reset the first appearance or set an emergency hearing on this motion;
4. Accept Defendants' answer, motion to dismiss, and federal relocation defenses for hearing on the merits;
5. Alternatively, stay enforcement long enough for Defendants to pursue appeal and any undertaking, waiver, reduction, or other relief the Court finds just; and
6. Grant any other relief necessary to prevent manifest injustice.

I. This Motion Is Timely and Urgent

Defendants file this motion immediately after discovering that they missed the 8:15 a.m. court appearance. The missed appearance was not intentional. It resulted from a good-faith calendar/time confusion involving a separate housing-related meeting titled "Gmail - Orientation Registration - Cortez - 04_22_2026 @10AM," which Defendants conflated with the court appearance time.

The mistake is especially understandable because both events concerned the same housing crisis, the same household, the same relocation/voucher process, and the same date, April 22, 2026. Defendants were not ignoring the Court; they were attempting to attend to the housing and relocation process that is directly intertwined with this eviction.

II. Relief Is Available Under ORCP 71 B

ORCP 71 B(1) authorizes relief from judgment for mistake, inadvertence, surprise, or excusable neglect; fraud, misrepresentation, or misconduct; voidness; and where it is no longer equitable that the judgment have prospective application.

Defendants invoke ORCP 71 B(1)(a), (d), and (e), and the Court's equitable authority to prevent manifest injustice.

III. The Failure to Appear Was Mistake, Inadvertence, or Excusable Neglect

Defendants' nonappearance was caused by a good-faith calendaring and time-confusion error. Defendants conflated:

1. the 8:15 a.m. Justice Court appearance; and
2. the separate 10:00 a.m. Multnomah County / housing orientation meeting reflected in the document titled "Gmail - Orientation Registration - Cortez - 04_22_2026 @10AM."

Defendants did not choose to default. Defendants have actively litigated and prepared defenses in this case, including a motion to dismiss and a federal authority packet concerning Plaintiff's public-housing relocation duties. The record shows Defendants' intent to defend, not abandonment.

IV. Any Judgment Is Void or Should Be Treated as Voidable Because Plaintiff Lacked a Legally Sufficient Present Claim for Possession

Defendants also move for relief on the ground that any default possession judgment is void or voidable. Even on default, a court should not enter a judgment that is unsupported by a legally sufficient claim for possession.

This case is not a routine private holdover. Plaintiff is the Housing Authority of Clackamas County, and the eviction arises from public-housing displacement tied to demolition, disposition, relocation, and Tenant Protection Voucher administration.

Federal law controls key conditions precedent to displacement and possession. Under 42 U.S.C. § 1437p and 24 C.F.R. § 970.21, public-housing residents displaced by demolition or disposition must be offered comparable housing, relocation expenses, counseling, and actual relocation protections. Tenant-based assistance is not comparable housing until the family is actually relocated into such housing. Under 24 C.F.R. § 972.130(b)(4), where Section 8 voucher assistance is used for relocation, the family must be provided vouchers at least 90 days before displacement.

Those rules are not merely background defenses. They bar Plaintiff from obtaining or enforcing possession as though relocation were complete unless the federal relocation prerequisites have actually been satisfied. In particular, HACC could not treat Tenant Protection Voucher paperwork or an unfinished housing search as completed comparable housing, because tenant-based assistance satisfies the comparable-housing requirement only when the family is actually relocated into that housing. HACC also could not use voucher-based relocation as a basis for displacement unless the voucher assistance was provided at least 90 days before displacement where 24 C.F.R. § 972.130 applies.

Plaintiff's pursuit of immediate possession while the voucher, portability, accommodation, and relocation process remained incomplete therefore creates a serious legal defect in the possession claim. A default judgment entered without adjudicating those controlling defenses would rest on a legally insufficient premise: that Plaintiff was presently entitled to possession despite unresolved federal relocation conditions and despite federal law barring displacement before those conditions were satisfied.

For that reason, Defendants contend any judgment is void, voidable, or must be vacated under ORCP 71 B to permit adjudication of the merits.

V. Manifest Injustice Would Result if the Judgment Stands

Allowing the judgment to stand would create manifest injustice. Defendants face loss of home, loss of possession, possible lockout, loss or collapse of relocation and voucher rights, and possible destruction of the very subject matter of the case before the Court reaches the merits.

The prejudice to Defendants is extreme. By contrast, the prejudice to Plaintiff from setting aside the default is limited: Plaintiff will still be able to litigate its claimed entitlement to possession, but on a record where Defendants can present their defenses.

Oregon policy favors resolving cases on the merits when a default results from excusable mistake and when the party seeking relief acts promptly. That policy is especially important in a residential eviction involving subsidized housing, disability/accommodation issues, Tenant Protection Voucher timing, and federal relocation conditions.

VI. Defendants Have Meritorious Defenses

Defendants have substantial defenses, including but not limited to:

1. Plaintiff failed to plead or prove present entitlement to possession.
2. Plaintiff pursued possession before completing federal relocation duties under 42 U.S.C. § 1437p and 24 C.F.R. § 970.21.
3. Plaintiff did not provide voucher-based relocation assistance at least 90 days before displacement as required where 24 C.F.R. § 972.130 applies.
4. Tenant-based assistance does not count as comparable housing until actual relocation into such housing.
5. Plaintiff's own records show the relocation/voucher path was active and unresolved in March and April 2026.
6. Plaintiff's process also implicates reasonable-accommodation, live-in-aide, disability, and emergency-transfer issues that were not resolved before the possession request.

These defenses are not offered for delay. They go directly to whether Plaintiff had any lawful present right to possession.

VII. Requested Emergency Stay

Defendants request immediate stay of enforcement before any restitution, writ, lockout, or eviction trespass process issues or is executed. If any writ or restitution process has already issued, Defendants request immediate recall, quashing, or suspension pending hearing on this motion.

If the Court requires an undertaking for stay or appeal, Defendants request waiver, reduction, limitation, or equitable terms based on good cause, indigency/limited means if applicable, the federal relocation posture, and the severe risk of irreparable harm.

VIII. Conclusion

Defendants missed the 8:15 a.m. appearance because of a good-faith mistake involving a separate 10:00 a.m. housing orientation meeting on the same date, not because they abandoned their defense. They acted promptly, have substantial defenses, and face manifest injustice if a default possession judgment is allowed to stand.

Defendants respectfully ask the Court to set aside any default or judgment, stay enforcement immediately, reset the matter for hearing on the merits, and grant all relief necessary to preserve the tenancy, relocation process, voucher rights, and court's ability to decide the case lawfully.

DATED: April ___, 2026.

Respectfully submitted,

_____

Benjamin Jay Barber, Defendant pro se

_____

Jane Kay Cortez, Defendant pro se

Proposed Order

IN THE JUSTICE COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

HOUSING AUTHORITY OF CLACKAMAS COUNTY,

Plaintiff,

v.

JANE KAY CORTEZ, BENJAMIN JAY BARBER, and ALL OTHER OCCUPANTS,

Defendants.

Case No. 26FE0586

ORDER ON DEFENDANTS' EMERGENCY MOTION FOR RELIEF FROM JUDGMENT

The Court has considered Defendants' Emergency Motion for Relief from Judgment, to Set Aside Default, and to Stay Enforcement.

IT IS ORDERED:

[ ] Defendants' motion is GRANTED. Any default, judgment for possession, judgment of restitution, or related order entered on or about April 22, 2026 is vacated and set aside.

[ ] Enforcement of any judgment, notice of restitution, writ of execution, lockout, or eviction trespass notice is stayed immediately pending further order.

[ ] Any issued writ, restitution process, lockout process, or eviction trespass notice is recalled, quashed, or suspended.

[ ] The matter is reset for hearing on _____, 2026 at _____.

[ ] Defendants may file or present their answer, motion to dismiss, and federal relocation defenses.

[ ] Defendants' request for relief is denied.

[ ] Other: _____

DATED: _____, 2026.

_____

Judge

Certificate of Service

I certify that on April ___, 2026, I served a true copy of this motion on Plaintiff Housing Authority of Clackamas County by:

[ ] First-class mail to: Housing Authority of Clackamas County, 13930 S Gain St, Oregon City, OR 97045.

[ ] Email to: cskee@clackamas.us.

[ ] Hand delivery.

[ ] Other: _____

_____

Benjamin Jay Barber

_____

Jane Kay Cortez

Benjamin Jay Barber, pro se

Jane Kay Cortez, pro se

10043 SE 32nd Ave

Milwaukie, OR 97222

971-270-0855

starworks5@gmail.com

Defendants

IN THE JUSTICE COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

HOUSING AUTHORITY OF CLACKAMAS COUNTY,

Plaintiff,

v.

JANE KAY CORTEZ, BENJAMIN JAY BARBER, and ALL OTHER OCCUPANTS,

Defendants.

Case No. 26FE0586

DECLARATION OF BENJAMIN JAY BARBER IN SUPPORT OF EMERGENCY MOTION FOR RELIEF FROM JUDGMENT

I, Benjamin Jay Barber, declare:

1. I am a Defendant in this case. I make this declaration from my own personal knowledge unless otherwise stated.

2. The court appearance in this eviction matter was scheduled for April 22, 2026 at 8:15 a.m.

3. I missed that appearance by mistake. I did not intentionally fail to appear, and I did not intend to abandon any defense.

4. I confused the 8:15 a.m. court appearance with a separate housing-related meeting on the same date. The separate meeting was reflected in a document/email titled "Gmail - Orientation Registration - Cortez - 04_22_2026 @10AM."

5. I understood that 10:00 a.m. meeting to be connected to Multnomah County / housing orientation and the same relocation/voucher process that is intertwined with this eviction case.

6. Because both events concerned the same housing crisis and occurred on the same date, I conflated the times in good faith.

7. I have actively tried to defend this case. Before the missed appearance, I had prepared or caused to be prepared a motion to dismiss, a federal authority packet, and arguments concerning HACC's unresolved public-housing relocation and Tenant Protection Voucher duties.

8. My household has substantial defenses to possession. Those defenses include that HACC had not completed the relocation/voucher process before pursuing possession, that federal law required comparable housing and actual relocation protections, and that voucher assistance used for relocation had not been provided in a manner that allowed displacement 90 days later.

9. Allowing a default or possession judgment to stand because of this time-confusion mistake would cause severe prejudice, including loss of home, possible lockout, disruption of relocation rights, and possible loss or collapse of voucher/subsidy protections before the merits are heard.

10. I acted promptly once I realized the mistake and am asking the Court to set aside any default or judgment and allow the matter to be heard on the merits.

11. Attached or available as Exhibit A is the document titled "Gmail - Orientation Registration - Cortez - 04_22_2026 @10AM," which reflects the separate 10:00 a.m. housing-related orientation that contributed to the confusion.

I declare under penalty of perjury that the foregoing is true and correct.

DATED: April ___, 2026, at Milwaukie, Oregon.

_____

Benjamin Jay Barber

DECLARATION OF JANE KAY CORTEZ

I, Jane Kay Cortez, declare:

1. I am a Defendant in this case.

2. I understand that the April 22, 2026 8:15 a.m. court appearance was missed because of confusion with a separate 10:00 a.m. housing-related orientation meeting on the same date.

3. I did not intend to abandon my defenses or consent to eviction.

4. I ask the Court to set aside any default or possession judgment and allow the case to be heard on the merits.

5. I face serious prejudice and manifest injustice if a default judgment results in loss of my home, loss of relocation rights, or loss of voucher/subsidy protections before my defenses are heard.

I declare under penalty of perjury that the foregoing is true and correct.

DATED: April ___, 2026, at Milwaukie, Oregon.

_____

Jane Kay Cortez

EXHIBIT A

Gmail - Orientation Registration - Cortez - 04/22/2026 @ 10AM

Separate housing-related orientation document referenced in the declaration.

Gmail

benjamin barber <starworks5@gmail.com>

Orientation Registration - Cortez - 04/22/2026 @10AM

10 messages

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 14, 2026 at 1:02 PM
To: "starworks5@gmail.com" <starworks5@gmail.com>

Hello,

You link to register for the orientation is below. Your orientation is scheduled for 04/22/2026 at 10AM. I am mailing out your orientation packet today, please confirm your mailing address.

Wednesday, April 22 at 10 AM - Cortez

-

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

homeforward

135 SW Ash Street

Portland, Oregon 97204

tel: 503.802.8315

fax: 503.802.8330

tty: 503.802.8554

web: www.homeforward.org

Extensions must be submitted in writing before the voucher expires.

Reporting household changes must be in writing. Forms are available on Home Forward's website. On the homepage, enter keywords: Housing program>housing choice voucher>participant>household changes. You can also request to have the forms mailed to you.

You can pick up forms or drop off packets at our customer service window.

The customer service window is open Tuesday – Thursday from 9:00AM – noon and 1:00PM - 3:00PM at 135 SW Ash Street

Confidentiality Notice: This communication may contain privileged or other confidential information exempt from disclosure. If you are not the intended recipient, you may not use, copy, disseminate or retain this message. Please delete the copy you received and alert the sender to the transmission error. Thank you.

---

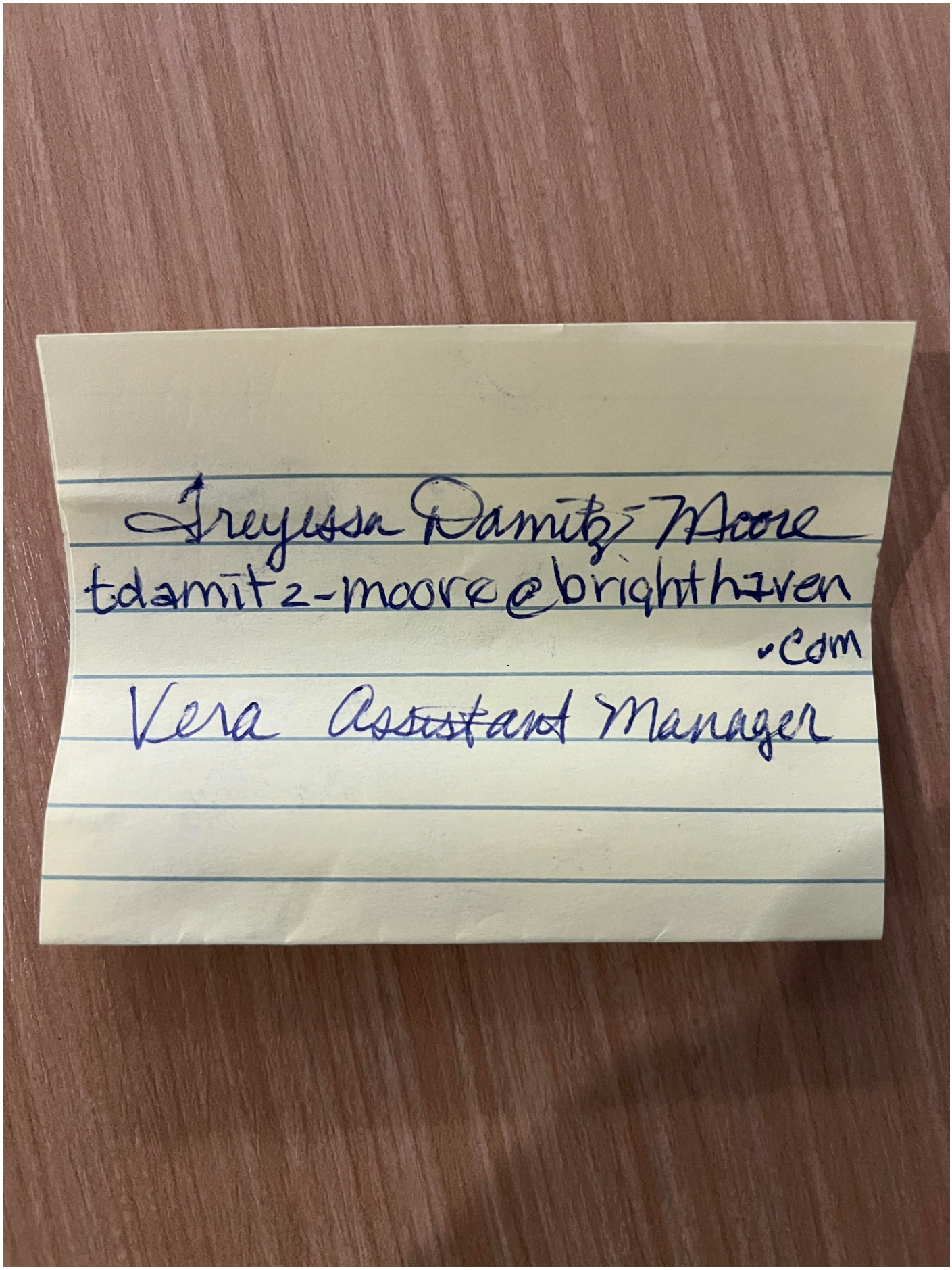
benjamin barber <starworks5@gmail.com> Tue, Apr 14, 2026 at 1:04 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

my mailing address is 10043 SE 32nd Ave, Milwaukie, OR 97222
[Quoted text hidden]

---

benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:43 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>, "Tilton, Kati" <ktilton@clackamas.us>, "Ciecko, Scott" <SCiecko@clackamas.us>, "Skee, Charley" <CSkee@clackamas.us>, "Anderson, Laura" <LAnderson2@clackamas.us>

I have an eviction court scheduled for that same time at the Clackamas county justice court where I have submitted a motion to dismiss for failure to obey federal law and give me 90 days from the issuance of a voucher to file an eviction. Otherwise the staff at the Vera want you to contact them to get us moved there. Please thank Clackamas county for being retarded and wasting everyone’s time



On Tue, Apr 14, 2026 at 1:02 PM Ashley Glass <Ashley.Glass@homeforward.org> wrote:

[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 2:46 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

Are you saying your court was scheduled the same time orientation is?

Also, you just need to give the Vera the RFTA and lead paint disclosure. I don't do anything with the property until I receive the voucher and lead paint receipt from Jane and the RFTA and Lead paint disclosure from the property.

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

homeforward

If you need to report any household or income changes, you can download documents from the participant portal at

https://portal.homeforward.org/Forms/Participant

You can pick up forms or drop off packets at our customer service window.

The customer service window is open Tuesday – Thursday from 9:00AM – noon and 1:00PM - 3:00PM at 135 SW Ash Street

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From: benjamin barber <starworks5@gmail.com>
Sent: Tuesday, April 21, 2026 2:43 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>; Tilton, Kati <ktilton@clackamas.us>; Ciecko, Scott <SCiecko@clackamas.us>; Skee, Charley <CSkee@clackamas.us>; Anderson, Laura <LAnderson2@clackamas.us>
Subject: Re: Orientation Registration - Cortez - 04/22/2026 @10AM

🛑 CAUTION: This email is NOT from a Home Forward email address. Do NOT click links or open attachments unless you recognize the sender and know the content is safe. Home Forward does NOT have a "Safe Sender" list. :CAUTION 🛑

[Quoted text hidden]

---

benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:47 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

Yes
[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 2:52 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

I can reschedule orientation for 04/24/2026 at 1PM, it will be a over the phone orientation – not with me.

Does that date and time work for you and Jane?

[Quoted text hidden]

---

benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:52 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

yes
[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 3:10 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

Your orientation is scheduled for 04/24/2026 at 1PM. You'll receive an email regarding the orientation before 1PM 04/24/2026.

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

[Quoted text hidden]
[Quoted text hidden]

---

benjamin barber <starworks5@gmail.com> Wed, Apr 22, 2026 at 9:50 AM
Draft To: Ashley Glass <Ashley.Glass@homeforward.org>

[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Wed, Apr 22, 2026 at 9:53 AM
To: benjamin barber <starworks5@gmail.com>

Hello,

Wednesday, April 22 at 10 AM - Cortez

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

[Quoted text hidden]
[Quoted text hidden]